

The Prevention Of Cruelty To Animals (Registration Of Cattle Premises) Rules, 1978

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The Prevention Of Cruelty To Animals (Registration Of Cattle Premises) Rules, 1978

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The Prevention Of Cruelty To Animals (Registration Of Cattle Premises) Rules, 1978

Rule THE-PREVENTION-OF-CRUELTY-TO-ANIMALS-REGISTRATION-OF-CATTLE-PREMISES-RULES-1978 of 1978

Published on 30 December 1978

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The Prevention Of Cruelty To Animals (Registration Of Cattle Premises) Rules, 1978

Published vide S.O. 281, dated 30.12.1978, published in the Gazette of India, Part II, Section 3(ii), dated 20.1.1979.
19.

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In exercise of the powers conferred by clause (i) of sub-section (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (
59 of 1960

), the Central Government hereby makes the following rules, namely:--

1.

Short title and application .-(1) These rules may be called The Prevention of Cruelty to Animals (Registration of Cattle Premises) Rules, 1978.

(2)

These rules shall apply only to cities or towns which have a population exceeding one lakh.

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,--

(a)

"cattle" means oxen, buffaloes, cows, bullocks and horses, including their young ones;

(b)

"certificate" means the certificate of registration;

(c)

"registering authority" means such officers of the veterinary department of the State Government or of a local authority as the State Government may, by general or special order, specify in this behalf.

3.

Registration of premises .-Every person owning or in charge of premises in which not less than five heads of cattle are kept for the purpose of profit shall, in any case, where the premises are already in existence, within three months from the commencement of these rules and, in any case where, after the commencement of these rules any such premises, apply to the registering authority for the registration of such premises.

4.

Application for registration .-Every application for registration shall contain full information regarding the number and types of animals kept or to be kept, the purpose for which they are being kept or are to be kept, the provision made or to be made as respects floor space, flooring ventilation, supply of food and water, disinfection, drainage, disposal of dung or unwanted matter, boundary walls and shall also contain such other information relevant to the matter as may be specifically called for by the registering authority.

5.

Certificate of registration .-(i) If the registering authority is satisfied that, having regard to the information supplied, the welfare of the cattle is adequately secured and that they are not likely to undergo any unnecessary suffering, he shall register the premises and issue to the applicant a certificate in respect thereof.

(ii)

Every certificate shall be valid for a period of three years from the date of issue thereof, but it may be renewed from time to time for a period of three years at a time an application made by the person owning or in charge of the premises, within three months from the date of expiry of the existing certificate.

6.

Inspection of premises .-Every premises registered under these rules shall be open for inspection at all reasonable times by any veterinary or public health officer of the local authority or of the State Government who may be authorised by the State Government in this behalf by general or special order.

7.

Cancellation of registration .-If any premises are not maintained in the manner required under these rules, the registering authority may, by notice in writing stating the grounds on which the notice proceeds and after giving an opportunity to the person concerned to show cause, cancel the certificate.

8.

Appeal .-An appeal shall lie from any order refusing or cancelling the registration of any premises under these rules to such officer or other authority as the State Government may specify in this behalf.

9.

Display of section 12 of the Act .-If in any premises milch cattle are kept, there shall be displayed by the owner of cattle prominently in or near the premises, a copy of section 12 of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960) in a language commonly understood in the locality.

If any person performs upon any cow or other milch animal the operation called phooka or doom dev or permits such operation being performed upon any such animal in his possession or under his control, he shall be punishable with fine which may be extended to one thousand rupees, or with imprisonment for a fine which may extend to two years, or with both, and the animal on which the operation was performed shall be forfeited to the Government.

10.

Saving .-If in any area to which these rules apply, any rule, regulation or bye-law made under any law for the time being in force, by any local authority which contains the provisions for the registration or licensing of premises in which cattle or any type thereof are kept then such rule, regulation or bye-laws to the extent to which it contains provisions relating to cattle or any type thereof, as the case may be, shall to that extent be of no avail.

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